

BEFORE THE FEDERAL MARITIME COMMISSION

MSRF, INC.

Complainant,

v.

HMM COMPANY LIMITED,

Respondent.

FMC Docket No. 22-20

JOINT MOTION TO AMEND SCHEDULING ORDER

Pursuant to the Federal Maritime Commission Rules of Practice and Procedure, §502.141(h), the Complainant and Respondent (collectively the “Parties”) have met and conferred and submit this joint request to amend the October 6, 2022 Scheduling Order in this matter.

This case involves the review of a voluminous documentary record. The Parties are cooperating with the production and review of this evidence, but have found the time permitted to do so under the Scheduling Order is insufficient. For example, Complainant has recently completed its review and production of documents responsive to certain of Respondent’s document and other discovery requests, which production includes an additional 6,169 documents.¹ This is in addition to the approximately 8,111 documents produced by Respondent (these numbers exclude Initial Disclosures and in total number many tens of thousands of pages). These productions are in significant excess of the volumes anticipated by either Party, and the review of these documents is necessary to prepare for and take meaningful depositions of fact witnesses. Unfortunately, efforts to winnow the number of documents for review using de-

¹ Attached as Exhibit 1 is a spreadsheet correlating this production to the documents requests so that the Court can see the scale of the discovery exercise, noting this spreadsheet covers only a fraction of the documents produced in this matter.

duplication and technology-assisted review have been unsuccessful due to the large number of custodians and high volume of internal correspondence. Counsel for both parties have engaged review teams to complete the review of documents as quickly as possible, but each side still must identify responsive documents, review for privileged materials, and then repeat this exercise for the other side's production.

It has now become apparent that the Parties will not be able to complete fact discovery by the February 10, 2023 date in the Scheduling Order. Accordingly, the Parties respectfully jointly request that the Court amend the Scheduling Order to provide an additional sixty days for the completion of fact discovery. The Parties propose the following revised discovery schedule:

<u>Event</u>	<u>Deadline</u>
Initial Disclosures	September 21, 2022
Initial requests for production ("RFP") of documents and electronically stored information ("ESI")	October 14, 2022
Complainant's Notice of Expert Testimony	January 16, 2023
Complete Deposition of Fact Witnesses	March 10, 2023
Respondent's Notice of Expert Testimony	January 27, 2023
Last Day to Serve Interrogatories, Requests for Admission, and Final RFPs	March 10, 2023
Close of Discovery.....	April 7, 2023

As directed in the Scheduling Order, the Parties note that this extension would impact other deadlines as outlined above.

Respectfully submitted,

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Counsel for HMM Company Limited

Dated: January 4, 2023

CERTIFICATE OF SERVICE

I certify that, on January 4, 2023, a true and current copy of the foregoing Joint Status Report was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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